

2:00 PM LINE 11

25-CLJ-05253

U.S. BANK NATIONAL ASSOCIATION VS. OLGA C ENRIQUEZ

U.S. BANK NATIONAL ASSOCIATION
OLGA C ENRIQUEZ

STELLA PARK
ANDREW J. GRAMAJO

Plaintiff's Motion for Summary Judgment or in the Alternative Summary Adjudication

TENTATIVE RULING:

In this debt collection case, on March 27, 2026, plaintiff U.S. Bank National Association moved for summary judgment against defendant Olga C. Enriquez. Plaintiff served defendant's counsel by mail. However, that method of service is improper where defendant is represented by counsel. Plaintiff was and is required to serve all papers electronically. (See Cal. Rules of Court, rule 2.251(c)(3); Super. Ct. San Mateo County Local Rules, rule 2.1.7(a)(7).)

Even were service by mail permitted, there is no indication that the envelope was properly addressed to include Cordoba Legal Group, which is part of the address of record for defendant's counsel. (See Answer, p. 1.)

Defendant's counsel of record, Andrew J. Gramajo, filed a motion to be relieved as counsel on June 17, 2026, which is scheduled for hearing January 27, 2027. (See Motion to be Relieved as Counsel, filed June 17, 2026.) Mr. Gramajo's supporting declaration for the motion to be relieved as counsel states that he left Cordoba Legal Group approximately one year ago, that the client relationship was expressly between defendant and Cordoba Legal Group, and that he does not have access to Cordoba's files/systems/email. Mr. Gramajo states that he is unable to communicate with defendant and that his name remains as the counsel of record because of Cordoba's administrative failure to file a substitution of attorney. (See Declaration, filed June 17, 2026, ¶ 2.)

"Service by mail must be made in strict compliance with the mandates of [Code of Civil Procedure] sections 1013 and 1013a." (*Aquino v. Superior Court* (2021) 73 Cal.App.5th 104, 111.) Even minor technical defects such as omitting the law firm's name from the address render service by mail ineffective, as is the case here. (*Triumph Precision Products, Inc. v. Insurance Co. of North America* (1979) 91 Cal.App.3d 362, 364.)

Therefore, there is no indication notice of the motion was properly served, and a "court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question." (*Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205.) Accordingly, the motion is **DENIED without prejudice** to a renewed motion supported by valid proof of proper service.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's

signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the “prevailing party on a tentative ruling is required to prepare a proposed order *repeating verbatim the tentative ruling*” (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM LINE 12

26-UDL-00421

CHIU PROPERTIES, LLC VS. EDDY ADEMAR AREVALO, ET AL

CHIU PROPERTIES, LLC
EDDY ADEMAR AREVALO

STEVEN T. NAUMCHIK
PRO SE

Defendant Eddy Arevalo's Motion for Summary Judgment, or in the Alternative, Summary Adjudication

TENTATIVE RULING:

Defendant's Motion for Summary Judgment, or in the Alternative Summary Adjudication is **DENIED**.

Defendant's Request for Judicial Notice is **GRANTED** pursuant to Evidence Code, section 452, subdivision (d).

In an action to obtain possession of real property, a motion for summary judgment may be made at any time after the answer is filed upon giving five days notice, and shall be granted or denied on the same basis as a motion under Section 437c. (Code Civ. Proc., § 1170.7.)

Code of Civil Procedure, section 437c, subdivision (b)(1) provides that a motion for summary judgment "shall be supported by affidavits, declarations, admissions, answers to interrogatories, depositions, and matters of which judicial notice shall or may be taken." Under *Aguilar v. Atlantic Richfield* (2001) 25 Cal.4th 826, the party moving for summary judgment has the burden of production to make a *prima facie* showing that there is no triable issue of any material fact. The burden then shifts to the nonmoving party to make a *prima facie* showing that there is a triable issue of material fact.

Here, plaintiff served a three-day notice to perform covenants or quit on March 16, 2026. (Complaint, ¶ VI.) That notice recites that "[o]n March 6, 2026, management served a 3-day notice to perform or quit" requiring removal of an unauthorized occupant, and that Defendant Arevalo "failed to comply." (RJN, exh. 1, at p. 6.) The Complaint does not allege a separate notice to quit served after completion of any notice period. (UMF No. 12; See Complaint, generally, at RJN, exh. 1.)

Service of the requisite three-day notice is an element of an unlawful detainer cause of action that must be alleged and proven. (*Borsuk v. App. Div. of Superior Ct.* (2015) 242 Cal.App.4th 607.) For a covenant breach under Section 1161(3), the elements are failure to perform a lease covenant, service of a three-day notice to perform or surrender, refusal to perform, and continued possession after the period expires. (*Yanez v. Vasquez* (2021) 65 Cal.App.5th Supp. 1.) A landlord who does not strictly comply with the notice requirements cannot prevail. (*Eshagian v. Cepeda* (2025) 112 Cal.App.5th 433; *Gonzalez v. Bolanos* (2025) 116 Cal.App.5th Supp. 12.) If defendant establishes that plaintiff's notice was legally void,

plaintiff cannot prove this element and the claim fails, as do the claims for restitution and damages.

After twelve months' continuous and lawful occupancy, an owner "shall not terminate a tenancy without just cause, which shall be stated in the written notice to terminate tenancy." (Civ. Code, § 1946.2.) Defendant alleges that he has been in continuous occupancy of the premises for more than twelve months. (Arevalo Decl., ¶¶ 3-5.) He therefore contends that his tenancy meets this requirement, and that just cause is required for the termination of his tenancy, given the lease's election of disclosure that the tenancy is subject to those requirements. (UMF Nos. 2, 8; RJN, exh. 1.)

However, the Declaration of Jane Hagen, plaintiff's authorized agent, in opposition to the motion, raises a factual question about whether defendant has continuously occupied the premises. Exhibits 1 and 2 to her declaration, an email from defendant, and a copy of a criminal protective order – domestic violence, issued on January 1, 2026, respectively, indicate that defendant has not been living at the apartment and indeed is prohibited from coming within 100 yards of it, because his former partner, the protected party who is the allegedly unauthorized occupant, is living there. (See Hagen Decl., ¶¶ 4-7.)

Although defendant complains that plaintiff did not submit a separate statement in response to defendant's separate statement, these are not required to support summary judgment or adjudication motions in unlawful detainer proceedings. (See Cal. Rules of Court, rules 3.1350(c)(2), 3.1351.) "The procedures governing a motion for summary judgment in an unlawful detainer action are streamlined (e.g., separate statements are not required under § 437c, subd. (s) of the Code Civ. Proc.), but such a motion 'shall be granted or denied on the same basis as a motion under [Code of Civil Procedure s]ection 437c' (Code Civ. Proc., § 1170.7)." *Borden v. Stiles* (2023) 92 Cal.App.5th 337, 344-345, citing Cal. Rules of Court, rule 3.1351.) Accordingly, plaintiff has raised an issue of fact regarding whether defendant had continuously resided at the property for at least twelve months when the complaint was filed.

Defendant's motion and his reply primarily rely on the language of Civil Code, section 1946.2, subdivision (c), which states that "[b]efore an owner . . . issues a notice to terminate a tenancy for just cause that is a curable lease violation, the owner shall first give notice of the violation to the tenant with an opportunity to cure the violation pursuant to paragraph (3) of Section 1161 . . . If the violation is not cured within the time period set forth in the notice, a three-day notice to quit without an opportunity to cure may thereafter be served to terminate the tenancy." (Civ. Code, § 1946.2.) Failure to comply with "any provision of this section shall render the written termination notice void." (*Id.*, § 1946.2 subd. (g); *De Paolo v. Rosales* (2025) 118 Cal.App.5th Supp. 1.) Defendant reads the statute as requiring the second notice to be a three-day notice to quit without an opportunity to cure in order to satisfy the code section's requirements. However, this reading ignores the permissive "may" language of the statute and is not supported by authority holding that the additional process provided by the opportunity to cure in a second notice voids the effectiveness of the notice.

Defendant therefore has not shown that plaintiff cannot establish the notice element and that he is entitled to judgment as a matter of law. Defendant's alternative request for summary adjudication rests on the same argument.

The Motion for Summary Judgment and Alternative Motion for Summary Adjudication are accordingly **DENIED**.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the "prevailing party on a tentative ruling is required to prepare a proposed order *repeating verbatim the tentative ruling*" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.

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